



File No.: EXP202310996

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated July 30, 2024, and based on the following

FACTS

FIRST: On July 30, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202310996, by virtue of which the proceedings were ARCHIVED. This resolution, which was notified to the appellant on August 20, 2024, was issued in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: From the documentation in the file, the following was evidenced:

- The camera captures the antuzano, which in the property registry is listed as the property of the respondent.
- There has been no evidence of excess in the capture of public space, and therefore the existence of the infringement.

THIRD: The appellant submitted on September 19, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration, basing it, among other things, on the following regarding the recordings: "Well, having made the clear warning, this Agency has not complied with the due procedure, since knowing of the existence of a criminal proceeding in which 69 indiscriminate recordings of image and audio were submitted, not only of myself but also of my family and even minor grandchildren, providing only as an example one image of the many contained in the criminal complaint, the obligation of this agency was to apply the provisions of art. 67 of the LOPDGDD, CARRYING OUT THE PRIOR INVESTIGATIONS in order to achieve a better determination of the facts and circumstances that justify the procedure.

[...] the prior inquiries should have been carried out, which imposed the necessity to request the recordings from the judicial authority, in order to ascertain such serious violations and consequently, restore the rights that were illegitimately violated. For all these reasons, we understand that it is appropriate to declare the nullity of the Resolution of July 30, 2024, File EXP2023310996, for the

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reasons and grounds that precede, and instead, restoring the procedure to the moment of admitting the claim filed on its day that gives rise to the present procedure, AGREES to initiate the preliminary investigation proceedings, through which it requires the Court (...), located at Calle ***ADDRESS.1, to send the recordings and audios submitted in the complaint that gives rise to the (...), in order to determine whether they may have incurred in the violation of the right to honor, personal and family privacy, and one's own image (art. 18 CE), with the imposition of the sanctions that legally correspond."

And regarding the ownership of the antuzano, it indicates the following:

"[...] the resolution summarizes the response document of the accused dated ***DATE.1, in which, under a false argument, it claims that in the property registry of ***LOCALITY.1 it is recorded 'his antuzano,' and without the registration note stating this, it concludes that this is so because the public deed of inheritance adjudication and succession agreements refers to his antuzano, of about one hundred and twenty-five square meters, adding UNDER FALSEHOOD that 'according to the updated

simple note as of May 6, 2022, it is clearly stated that the antuzano falls within the boundaries belonging to the property located at ***ADDRESS.1.

That is to say, the cameras focus solely and exclusively on my family's property, that is, private property. As a consequence of such a false fact, the resolution in its Legal Foundation III concludes induced by the preceding assertion the following: 'In the present case, the camera captures the antuzano, which in the property registry is recorded as the property of the claimed party.' What the claimed party does not say is that while in the public deed of inheritance adjudication and succession agreements, under falsehood in their statements they incorporate the element 'antuzano,' they do so adding that it measures one hundred and twenty-five meters, AND LESS WHY THE REGISTRAR OF ***LOCALITY.1 DOES NOT REGISTER THEM.

It also does not state how prior to said registration, a civil procedure for negative action of easement is initiated...

[...] On the other hand, after knowing the aforementioned deed of inheritance adjudication and succession agreements, with such monumental coercion, this party files an action for nullity of the referred registration... and this gives rise to the verba procedure.....

Both procedures currently in processing demonstrate that what the accused claims can in no way be considered true, as 125 m2 of antuzano are not registered."

"[...] But furthermore, the property of this complaining party is part of the General Inventory of the Basque Cultural Heritage, as decreed by the Order of July 11, 2013, of the Department of Education, Language Policy and Culture of the Basque Government, of which I attach a copy as DOC. No. 6. This Order establishes the area subject to protection, and according to a query made by the owner of the referred property, the Basque Government, responding to its query, states that the area of protection is outside of its property. Proof of the query and response is attached as DOC. No. 7 [...]

Along with the appeal, the following documentation is submitted:

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-Letter from B.B.B. to the Basque Government dated 13/05/2013 requesting clarification of doubts regarding the inclusion (...) in the Basque Cultural Heritage, as well as the response dated 15/05/2013 from the Basque Government clarifying that the square between the two buildings will maintain access functionality.

-Excerpt from the Official Gazette of the Basque Country: Order of 11/07/2013, from the Minister of Education, Linguistic Policy and Culture, by which ***ADDRESS.3 is registered as a Cultural Asset, with the category of Monument, in the General Inventory of Basque Cultural Heritage. Official Gazette of the Basque Country.

-Decree of 08/11/2022: Admission to processing of the claim presented by the attorney Mr./Ms. C.C.C., on behalf of A.A.A., against the heirs of Ms. D.D.D. under the representation of E.E.E. and B.B.B., regarding ORDINARY TRIAL IN EXERCISE OF NEGATORY ACTION OF EASEMENT, proceeding under the rules of ordinary trial.

-Cadastral data sheets from the Provincial Council of Bizkaia dated 18/08/23 for the property in question at the address of La Tejera.

-Order of 18/01/2024: Admission to processing of the claim presented by the attorney Mr./Ms. C.C.C. on behalf of A.A.A., against F.F.F., (...) B.B.B., regarding the exercise of actions derived from registered real rights, in relation to the property described in the background of this resolution. The claim will be processed under the verbal trial procedures, with the special provisions set forth in articles 439.2, 440.2, and 441.3 of the LEC.

-Order of 15/07/2024: The present contentious-administrative lawsuit is declared concluded for judgment: (...) Section: X-X Ordinary Procedure (...) /2022

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD).

I

Response to the allegations presented

First of all, reference should be made to article 118 of the LPACAP, which states the following regarding Administrative Appeals:

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Article 118. Hearing of interested parties.

1. When new facts or documents not included in the original file need to be taken into account, they will be made available to the interested parties so that, within a period of no less than ten days and no more than fifteen, they may formulate allegations and present the documents and justifications they deem appropriate.

Facts, documents, or allegations from the appellant will not be taken into account in the resolution of the appeals when they could have been provided during the allegation phase but were not. The practice of evidence cannot be requested when its lack of execution in the procedure in which the contested resolution was issued is attributable to the interested party.

2. If there are other interested parties, they will be given, in any case, a copy of the appeal so that within the aforementioned period, they may allege whatever they deem appropriate.

3. The appeal, reports, and proposals do not have the character of new documents for the purposes of this article. Neither will those that the interested parties have submitted to the file before the contested resolution was issued.

As indicated in the third fact, the appellant has submitted various documents along with their request for reconsideration, documents that, however, cannot be taken into consideration in accordance with the aforementioned article 118 of the LPACAP. In this regard, the letter dated 13/05/2013, the excerpt from the bulletin of 11/07/2013, and the decree of admission to processing of the claim of 08/11/2022 are documents that were already in the possession of the appellant at the time of presenting their complaint and were not submitted at that time. Since they were not incorporated in due time, their introduction at this stage is inappropriate and cannot be admitted now.

Likewise, the cadastral data sheets of 18/08/2023, the order of 01/01/2024, and the order of 15/07/2024, although being documents subsequent to the initial complaint, could have been presented with the information expansion writings that the appellant themselves formulated later. However, since they were not submitted in such writings and are prior to the filing of the procedure, they also cannot be taken into account at this stage. Consequently, the documentation presented with the request for reconsideration cannot be considered to substantiate a modification of the contested resolution.

Furthermore, regarding the statements made by the appellant, this Agency is not competent to assess issues related to the ownership of the antuzano or, since the matter is sub iudice, must be resolved in the Courts.

The appeal presented reveals the existence of ongoing judicial proceedings (negatory action of easement and an action for nullity of registration), which indicates that the discrepancy alleged by the appellant is based on a pending litigation regarding the ownership and delimitation of a property. By

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Thus, the issue raised does not fall within the scope of data protection, but rather pertains to a civil and registry dispute that is outside the jurisdiction of this procedure.

In this regard, the contested resolution does not prejudice or validate the registry entry, but simply refers to the information contained in the Property Registry presented by the responding party, the content of which enjoys a presumption of truthfulness in accordance with Article 38 of the Mortgage Law, unless its inaccuracy is proven by a final judicial ruling.

Given that, at this moment, there is no record of a judicial pronouncement declaring the nullity of the aforementioned registry entry, the arguments of the appellant asserting that such entry lacks validity or that the registered area does not match reality cannot be taken into account. As long as the registry entry maintains its legal effectiveness, its content must prevail as sufficient proof of the registered right, without this administrative procedure being responsible for analyzing or assessing the correctness of the registry entries.

For all the above reasons, and since the allegations presented in the appeal for reconsideration do not undermine the grounds for the agreed dismissal, but rather highlight a civil and registry issue outside the jurisdiction of this procedure, the appeal for reconsideration filed is dismissed, and the dismissal resolution is confirmed in all its terms.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

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Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on July 30, 2024, in file EXP202310996.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension concluded.

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Olga Pérez Sanjuán

Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency of the AEPD

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